RESOLUTION NO. 26-098

A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARSON, CALIFORNIA, AMENDING RESOLUTION NO. 26-092 TO REVISE THE CHARTER AMENDMENT MEASURE AND BALLOT QUESTION FOR THE NOVEMBER 3, 2026 GENERAL MUNICIPAL ELECTION; MAKING A CONFORMING AMENDMENT TO RESOLUTION NO. 26-094 REGARDING THE CHARTER AMENDMENT MEASURE; AND CONFIRMING THAT RESOLUTION NO. 26-093 REMAINS UNCHANGED

WHEREAS, the City of Carson ("City") is a charter city organized under the Constitution and laws of the State of California and the City Charter; and

WHEREAS, California Constitution Article XI, section 3, Government Code section 34458, Elections Code section 9255, and City Charter section 111 authorize the City Council to propose amendments to the City Charter for submission to the voters; and

WHEREAS, on August 4, 2026, the City Council adopted Resolution No. 26-092, calling for the holding of a General Municipal Election on November 3, 2026, for the purpose of submitting to the qualified voters of the City a measure proposing amendments to the City Charter (the "Charter Amendment Measure"), requesting consolidation with the statewide general election to be held on the same date, and requesting that the Los Angeles County Registrar-Recorder/County Clerk conduct all necessary election services; and

WHEREAS, Resolution No. 26-092 provides that the text of the Charter Amendment Measure to be submitted to the voters is set forth in Exhibit "A" thereto and sets forth the ballot question for the Charter Amendment Measure; and

WHEREAS, on August 4, 2026, the City Council also adopted Resolution No. 26-093, setting priorities for filing written arguments and directing the City Attorney to prepare an impartial analysis regarding the Charter Amendment Measure, and Resolution No. 26-094, providing for the filing of rebuttal arguments regarding the Charter Amendment Measure; and

WHEREAS, pursuant to Elections Code section 9605, an order of election may be amended upon the filing of a resolution by the legislative body stating the specifics concerning the amendment; and

WHEREAS, the City Council desires to revise the duties of the City Treasurer by deleting subsections (8) and (9) of Section 502 of the City Charter, which address the City Treasurer's duties concerning the City's investment policy and investment committee; and

WHEREAS, to incorporate the additional proposed Charter amendment, the City Council desires to revise Exhibit "A" to Resolution No. 26-092 and revise the ballot question to reflect the Charter Amendment Measure as amended; and

WHEREAS, Resolution No. 26-094 contains a recital identifying the Charter sections included in the Charter Amendment Measure, and the addition of Section 502 to the Charter Amendment Measure requires a conforming amendment to that recital so that Resolution No. 26-094 accurately describes the measure as amended; and

WHEREAS, Resolution No. 26-093 does not identify the individual Charter sections included in the Charter Amendment Measure and requires no amendment as a result of the additional proposed Charter

amendment; and

WHEREAS, except as expressly amended by this Resolution, the City Council desires that Resolution Nos. 26-092 and 26-094 remain unchanged and in full force and effect, and that Resolution No. 26-093 remain unchanged and unaffected by this Resolution.

NOW, THEREFORE, THE CITY COUNCIL OF THE CITY OF CARSON, CALIFORNIA, DOES HEREBY RESOLVE, DECLARE, DETERMINE AND ORDER AS FOLLOWS:

Section 1. **Recitals.** The foregoing recitals are true and correct and are incorporated herein by this reference.

Section 2. **Amendment to Title of Resolution No. 26-092.** The title of Resolution No. 26-092 is hereby amended and replaced in its entirety to read as follows:

> "A RESOLUTION OF THE CITY COUNCIL OF THE CITY OF CARSON, CALIFORNIA, CALLING FOR THE HOLDING OF A GENERAL MUNICIPAL ELECTION TO BE HELD ON TUESDAY, NOVEMBER 3, 2026 FOR THE PURPOSE OF SUBMITTING TO THE QUALIFIED VOTERS OF THE CITY A CHARTER AMENDMENT MEASURE INCLUDING AMENDMENT OF SECTIONS 301, 305, 306, 319, 502, AND 907 OF, AND ADDITION OF NEW SECTION 320 TO THE CITY CHARTER, REQUESTING CONSOLIDATION WITH THE STATEWIDE GENERAL ELECTION TO BE HELD ON THE SAME DATE, AND REQUESTING THAT THE LOS ANGELES COUNTY REGISTRAR-RECORDER/COUNTY CLERK CONDUCT ALL NECESSARY ELECTION SERVICES"

Section 3. **Conforming Amendment to Recital of Resolution No. 26-092.** The final recital of Resolution No. 26-092 is hereby amended and replaced in its entirety to read as follows:

> **"WHEREAS**, the City Council desires to submit a proposed Charter amendment measure including amendment of City Charter Sections 301, 305, 306, 319, 502, and 907, and addition of new Section 320, as set forth in Exhibit "A" to this Resolution, to the qualified voters of the City of Carson at the General Municipal Election to be held on November 3, 2026 (the "Charter Amendment Measure"), and to request that the Los Angeles County Board of Supervisors consolidate the Charter Amendment Measure with the statewide general election to be held on the same date and authorize the Los Angeles County Registrar-Recorder/County Clerk to conduct all necessary election services."

Section 4. **Amendment to Ballot Question.** The ballot question set forth in Resolution No. 26-092 is hereby amended and replaced in its entirety with the following:

Carson City Government Accountability, Charter Reform, No Tax Increase Measure. Shall the measure amending the Carson City Charter to require campaign contribution transparency; make the City Charter consistent with State law on referring ballot measures for voter approval; update term limits to increase voter options; update City Treasurer duties; clarify and clean up inconsistent or outdated language, be adopted?	YES
	NO

Section 5. **Amendment to Charter Amendment Measure and Exhibit "A" to Resolution No.**

26-092. The Charter Amendment Measure previously ordered submitted to the voters pursuant to Resolution No. 26-092 is hereby amended to additionally provide for the deletion in their entirety of subsections (8) and (9) of Section 502 of the City Charter. The revised Exhibit "A" attached hereto and incorporated herein by this reference shall supersede and replace Exhibit "A" to Resolution No. 26-092 in its entirety as the text of the Charter Amendment Measure to be submitted to the voters at the November 3, 2026 General Municipal Election.

Section 6. Conforming Amendment to Resolution No. 26-094. The second recital of Resolution No. 26-094 is hereby amended and replaced in its entirety to read as follows:

> "**WHEREAS**, a General Municipal Election is to be held in the City of Carson, California, on November 3, 2026, at which there will be submitted to the voters a measure proposing amendments to Sections 301, 305, 306, 319, 502, and 907 of, and adding Section 320 to, the City Charter ("Charter Amendment Measure"); and"

The foregoing amendment is solely a conforming amendment to the description of the Charter Amendment Measure contained in Resolution No. 26-094 and does not amend or otherwise affect the rebuttal argument procedures established by Resolution No. 26-094.

Section 7. Resolution No. 26-093. Resolution No. 26-093, setting priorities for filing written arguments and directing the City Attorney to prepare an impartial analysis regarding the Charter Amendment Measure, is not amended or otherwise affected by this Resolution and shall remain unchanged and in full force and effect.

Section 8. Continued Effect of Resolution Nos. 26-092 and 26-094. Except as expressly amended by this Resolution, all terms and provisions of Resolution Nos. 26-092 and 26-094 shall remain unchanged and in full force and effect.

Section 9. Filing and Election Administration. The City Clerk/City's designated elections official is hereby authorized and directed to immediately file a certified copy of this Resolution and revised Exhibit "A" with the Los Angeles County Board of Supervisors and the Los Angeles County Registrar-Recorder/County Clerk and to take any and all actions necessary to implement the amendments approved by this Resolution in connection with the November 3, 2026 General Municipal Election.

Section 10. Conforming Changes. The City's designated elections official is hereby authorized and directed to make any non-substantive, clerical, formatting, or conforming changes to this Resolution, revised Exhibit "A," the ballot question, and related election materials as may be required by the Los Angeles County Registrar-Recorder/County Clerk or applicable law, provided that such changes do not materially alter the Charter Amendment Measure approved by the City Council for submission to the voters.

Section 11. Effective Date. That the City Clerk shall certify to the passage and adoption of this Resolution and enter it into the book of original Resolutions. This Resolution shall be effective immediately upon passage and adoption.

[REMAINDER OF THIS PAGE INTENTIONALLY LEFT BLANK]

PASSED, APPROVED, AND **ADOPTED** this 12th day of August 2026.

APPROVED AS TO FROM:

Sunny K. Soltani, City Attorney

CITY OF CARSON:

Lula Davis-Holmes, Mayor

ATTEST:

Dr. Khaleah K. Bradshaw, City Clerk

STATE OF CALIFORNIA)
COUNTY OF LOS ANGELES) ss.
CITY OF CARSON)

I, Dr. Khaleah K. Bradshaw, City Clerk of the City of Carson, California, hereby attest to and certify that the foregoing resolution, being Resolution No. 26-098 adopted by the City of Carson City Council at its meeting held on August 12, 2026, by the following vote:

AYES:	COUNCIL MEMBERS:	Davis-Holmes, Hicks, Hilton, Rojas
NOES:	COUNCIL MEMBERS:	None
ABSTAIN:	COUNCIL MEMBERS:	None
ABSENT:	COUNCIL MEMBERS:	Dear

Dr. Khaleah K. Bradshaw, City Clerk

EXHIBIT A

CHARTER AMENDMENTS

CHARTER SECTIONS TO BE AMENDED (ADDITIONS SHOWN IN *BOLD ITALICS* AND DELETIONS IN ~~STRIKETHROUGH~~):

Note: Portions of the listed sections which are not shown below are not amended.

SECTION 301. Elective Officers; Indemnification.

The elective officers of the City shall consist of four city council members, one directly elected mayor, a city clerk, and a city treasurer, ***either through at large or district elections, as determined by the city council. For any district elections,*** the members of the city council ~~and the mayor~~ shall be elected by the voters from ***their respective districts*** ~~the City at large~~ ***and the mayor shall be elected by a citywide vote*** at the time and in the manner provided in this Charter. ***For any at large elections, city council members and the mayor will be elected by a citywide vote.*** In the event that the population of the City exceeds one hundred thousand (100,000) residents, by resolution of the city council, the City may increase the elective officers of the City to six city council members, one directly elected mayor, a city clerk, and a city treasurer.

All elective officers shall serve for a term of four years and until their respective successors are elected and qualified. The elective officers in office at the time this Charter takes effect shall continue in office until the termination of their current terms and succeeding terms shall be likewise for four (4) years. ***There shall be no limit on the number of terms that elective officers may serve.*** The term of each elective officer shall commence no later than five days from the certification of the election results by the city council. Ties in voting among candidates for officer shall be settled by lot.

Elective officers and employees shall have the same indemnification rights as specified under California State law only.

SECTION 306. Vacancies.

B. Filling Vacancy. A vacancy on the city council, from whatever cause, may be filled by appointment by a majority of the remaining members of the city council, or by the calling of a special election if no appointment is made within sixty (60) days of the commencement of the vacancy. No person shall be eligible to fill a vacancy unless, at the time of appointment, they are a qualified elector of the City~~,~~ ***and*** have been domiciled in the City for at least sixty (60) days immediately preceding his or her appointment~~, and have not reached the term limit for city councilmembers pursuant to Section 305 of this Charter prior to, or during, their appointment to fill the vacancy~~. Any person appointed or elected to fill a vacancy on the city council shall serve the remaining unexpired term of the office. In the event it shall fail to fill a vacancy by appointment within sixty (60) days after such office shall become vacant, the city council shall cause an election to fill such vacancy to be held at the next available state election, but not less than 114 days from the call of the special election. The times and procedures for the calling of any special election to fill a city council vacancy may be established by City ordinance consistent with State law.

SECTION 319. Contracts; Property.

B. City Manager Authority to Contract. By ordinance or resolution the city council may authorize the city manager ***to approve any contract for any subject matter so long as such approval complies with applicable law. By ordinance or resolution the city council may also authorize the city manager*** to bind the City, with a written contract, including by purchase order, for the acquisition of equipment, materials, supplies, labor, services or other items included within the budget approved by the city council, and shall by ordinance impose a monetary limit upon such authority as authorized by this Charter.

D. Sale of Real Property. No real property of City ***may*** ~~shall~~ be sold, transferred or conveyed ***in fee*** without ~~a finding by the planning commission and~~ city council ***approval by resolution*** ~~as to the consistency of the sale with the general plan~~. Moreover, real property valued at more than two million five hundred thousand dollars ($2,500,000), may not be sold, transferred or conveyed except when approved by ordinance or resolution passed by a two-thirds affirmative vote of the city council.

E. Acquisition of Real Property. Any real property which is sold, dedicated, or transferred to City ***in fee*** must be accepted by resolution of the city council.

SECTION 907. Limitation on Tax Authority.

(2) Special Tax. The city council shall not impose, extend, or increase any special tax for specific purposes unless and until that tax is submitted to the electorate ***after a*** ~~by a two-thirds affirmative~~ vote of the city council ***consistent with state law*** and approved by a two-thirds vote of the voters. A special tax shall not be deemed to have been increased if it is imposed at a rate not higher than the maximum rate so approved.

CHARTER SECTION TO BE ADDED:

SECTION 320. Reporting of Campaign Donations.

Each City councilmember and mayor must comply with state disclosure laws for campaign donations. The City's local donation disclosure rules shall not be less stringent than those of the state; City may not increase the minimum donation reporting threshold to be higher than the dollar threshold required under state law.

CHARTER LANGUAGE TO BE REMOVED:

The City shall remove all references to a fixed year date contained in the provisions of the charter and Sections 305, 502 (8), 502 (9), and 907 (4) shall be deleted in their entirety.